

Compromise Petitions and finds the proposed terms to be just and reasonable.

Disposition

The Court finds and rules as follows:

1. The Minor's Compromise Petitions are APPROVED.
2. Counsel for the moving parties to submit proposed forms of order for the Court's approval and entry.

2. 9:00 AM CASE NUMBER: C23-01137
CASE NAME: BRAYAN RUBIO VS. HATEM AHMED
***HEARING ON MINOR'S COMPROMISE RE: JONATHAN ALFEREZ RUBIO**
FILED BY: RUBIO, BRAYAN
TENTATIVE RULING:

See LINE 1 above.

3. 9:00 AM CASE NUMBER: C23-01137
CASE NAME: BRAYAN RUBIO VS. HATEM AHMED
***HEARING ON MINOR'S COMPROMISE RE: KEVIN ALFEREZ RUBIO**
FILED BY: RUBIO, BRAYAN
TENTATIVE RULING:

See LINE 1 above.

4. 9:00 AM CASE NUMBER: C23-01955
CASE NAME: NICOLE TRIPPIE VS. MISTY LEONE
***HEARING ON MOTION IN RE: MOVE THE OBJECTION/REPLY FILING DATE AND THE HEARING DATE FOR COURT-APPOINTED RECEIVER DAN HARKINS' MOTION FOR AN ORDER TERMINATING RECEIVERSHIP**
FILED BY: TRIPPIE, NICOLE D.
TENTATIVE RULING:

Plaintiff Nicole Trippie ("Plaintiff") filed a Motion to (1) Move the Objection/Reply Filing Dates and the Hearing Date for Court-Appointed Receiver Dan Harkins' Motion for an Order Terminating Receivership, (2) Order Court-Appointed Receiver Dan Harkins to Submit to Discovery, and (3) Terminate the Receivership, but not Discharge Dan Harkins on November 17, 2025 (the "November 17, 2025 Motion"). The November 17, 2025 Motion was set for hearing on March 23, 2026.

The Request for Judicial Notice filed in support of the motion is GRANTED.

Background

The court-appointed receiver (the "Receiver") filed a final account and report on November 3, 2025. The Receiver has filed a Motion for an Order: 1. Approving Receiver's Final Report and Account; 2.

Discharging Receiver; 3. Approving Final Fees and costs of Receiver and Counsel; 4. Approving Disposition of CMD Saloon, LLC's Assets; and 5. Terminating Receivership (the "Receivership Motion"). At the time of the November 17, 2025 Motion, the Receivership Motion was set for hearing on December 8, 2025. Since that time, the motion was continued several times and is presently set for April 23, 2026. See Issue Conference Order / CMC Order entered January 20, 2026 (the "January 20, 2026 CMC Order").

Analysis

The November 17, 2025 Motion sought to modify the prior hearing and briefing schedule on the Receivership Motion. Plaintiff argued that "recently discovered evidence of misconduct and mismanagement" and needed more time to investigate. The motion also sought to compel the Receiver to submit to a deposition and produce documents. Lastly, the motion sought to terminate the receivership immediately but to "retain jurisdiction" over the Receiver.

Scheduling

To the extent this motion sought an order to delay the hearing and briefing on the Receivership Motion, the motion is moot. Since the motion was filed, the Court already continued the hearing several times and then entertained extensive case management proceedings and gave all parties additional time, pushing the Receivership Motion to the April 2026 date.

Discovery

As discussed in its prior order entered March 10, 2026, the Court has no doubt that it has the power and authority to make orders in relation to the receivership, including as relates to the disclosure of books and records relating to the work of the Receiver. *Lesser & Son v. Seymour* (1950) 35 Cal. 2d 494, 499 ("The receiver is a mere agent and the property in his hands is really under the control and continuous supervision of the court.").

The Court understands that the parties have since conferred further with the Receiver about voluntary access to the Receiver's books and records. Moreover, as part of the prior case management proceedings, the Court ordered the parties to "to meet and confer regarding all unresolved discovery related matters." See January 20, 2026 CMC Order, ¶17.

No party has filed any further declaration or other paper showing that this meet and confer took place as relates to the discovery issues raised by November 17, 2025 Motion or otherwise indicating that any dispute remains after any informal efforts to obtain information and records from the Receiver since last Fall.

Termination of the Receivership

The Court declines to reach this issue in the context of this motion. The Receivership Motion is pending and a briefing schedule for all parties to address all issues in that pending proceeding, including discharge of the receiver and surcharge for any asserted misconduct, has been set after extensive case management proceedings.

Disposition

The Court finds and rules as follows:

1. The November 17, 2025 Motion is DENIED.
2. The Court shall issue the order after hearing.

5. 9:00 AM CASE NUMBER: C24-00605

CASE NAME: VIKAS PRAKASH VS. WILSON AQUINO

HEARING ON SUMMARY MOTION

FILED BY: AQUINO, WILSON

TENTATIVE RULING:

On the Court's own motion, the hearing on the motion is **continued to 9:00 a.m. on March 30, 2026.**

6. 9:00 AM CASE NUMBER: C24-01669

CASE NAME: DIEGO RIVEROS VS. CHRISTOPHER MARCONI

***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: DANIEL A. MULLER**

FILED BY: MARCONI, CHRISTOPHER

TENTATIVE RULING:

Daniel A. Muller ("Counsel") filed a Motion to be Relieved as Counsel on November 3, 2025 (the "Motion to be Relieved as Counsel"). The matter was set for hearing on March 23, 2026.

Background

Counsel seeks to be relieved as attorneys for defendant Christopher Marconi ("Defendant").

The supporting declaration filed by Counsel indicates that there has been a breakdown in the attorney-client relationship due to payment and communication issues. See Declaration filed November 3, 2025, ¶12. Defendant has been given notice of the Motion to be Relieved as Counsel. *Id.* at ¶13.

Analysis

The Motion to be Relieved as Counsel is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion to be Relieved as Counsel is GRANTED.
2. The hearing set for April 29, 2026 regarding an Order to Show Cause (OSC) issued to Counsel is VACATED and the OSC DISCHARGED.
3. Counsel to submit a proposed form of order after hearing.

7. 9:00 AM CASE NUMBER: C24-01921

CASE NAME: A-S PIPELINES INC., A CALIFORNIA CORPORATION VS. DAVID SEENO

***HEARING ON MOTION IN RE: SEAL PORTIONS OF DEC OF KRISTEN T GALLAGHER IN SUPPORT OF DEF MOTION TO DISQUALIFY PLTFS COUNSEL FOR UNAUTHORIZED DOCUMENT COLLECTION AND POSSESSION OF TAX RECORDS**

FILED BY: EDEN VALLEY RANCH LLC